

24STCV03912 24STCV03912

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-11

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Case Number: 24STCV03912 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT

IMMCO INVESTMENT, LLC'S MOTION AND MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,350.00 [CRS No. 379855542927]

Moving Party: Defendant, Immco Investments, LLC

Opposing Party: None

Notice: OK

Before the Court is Defendant Immco

Investments, LLC's ("Immco") motion to compel initial discovery responses from in pro per Plaintiff, Eul Hyung Choi, as relates to Immco's Special Interrogatories, Set One, Nos. 1-6 (CRS No. 379855542927).

Immco served the motion and accompanying papers and evidence on Plaintiff via mail to the address listed in her pleadings, as demonstrated by the proof of service attached to the notice of motion and motion, separate statement, declaration, and proposed order supporting the motion before the Court. (Compare Second Amended Complaint, p. 1 [physical address for Plaintiff], with June 3, 2026, Motion & Declaration & Separate Statement & Proposed Order (CRS No. 379855542927) at Proof of Service [showing service by mail at same address].)

No opposition appears in the record.

After review, the Court finds in favor of Immco.

A motion to compel an initial response can be made on the ground that a party did not serve a timely response to interrogatories. (Code Civ. Proc., § 2030.290, subd. (a).) To establish bases for relief, a movant must show (1) proper service (id. at § 2030.080, subd. (a)), (2) expiration of the deadline to respond (id. at § 2030.260, subds. (a)(b), and (3) no timely response (id. at § 2030.290, subd. (a), et seq.).

Here, Immco's paper's show (1) proper service (see June 3, 2026, Motion (CRS No. 379855542927), Garcia Decl., Ex. A at Proof of Service) and (2)-(3) nonresponse by Plaintiff after expiration of the response deadline (June 3, 2026, Motion (CRS No. 379855542927), Garcia Decl., ¶¶ 4-8, Ex. A).

No opposition appears in the record to dispute this position.

Accordingly, Immco's motion (CRS No. 379855542927) is GRANTED.

The Court similarly GRANTS Immco's corresponding request for sanctions against Plaintiff in the amount of \$1,350.00 pursuant to Code of Civil Procedure section 2030.290, subdivision (c), which are properly supported by Plaintiff's non-response and by counsel's declaration attached to the moving papers. (See Motion, Garcia Decl., ¶¶ 9-12; see Cal. Rules of Court, rule 3.1348 [court may award sanctions even in absence of opposition].)

Defendant Immco Investments, LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and

must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 11, 2026

MARK C. KIM

Judge of the
Superior Court